

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

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EDWIN ANAYA,

Plaintiff

- against -

Index No.

Purchased 7-3-19

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

**CITY OF NEW YORK,
NEW YORK CITY DEPARTMENT OF CORRECTIONS,
POLICE OFFICER VISAR SELMAJ (shield # 956),
POLICE OFFICER JOHN DOE,**

SUMMONS

Defendants.

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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
July 3, 2019


THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****EDWIN ANAYA****Plaintiff,****Index No.
Verified Complaint****- against -****CITY OF NEW YORK,
NEW YORK CITY DEPARTMENT OF CORRECTIONS,
POLICE OFFICER VISAR SELMAJ (shield # 956),
POLICE OFFICER JOHN DOE,****Defendants.**

Plaintiff EDWIN ANAYA, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY,
by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court
and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff EDWIN ANAYA was a resident of the State of New York.
2. At all times hereinafter mentioned, defendant CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, defendant NEW YORK CITY DEPARTMENT OF CORRECTIONS ("CORRECTIONS"), was and is an agent of defendant CITY.

4. At all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT (“POLICE”), was and is an agency of defendant CITY.
5. At all times hereinafter mentioned, defendants, POLICE OFFICER VISAR SELMAJ (shield # 956)(“P.O. SELMAJ”) and POLICE OFFICER JOHN DOE (“P.O. DOE”) were and still are officers employed by Defendants.

BACKGROUND

6. On April 9, 2018, at approximately 10:30 a.m., in the vicinity of the corner of Park Avenue and East 183rd Street in Bronx County, without just cause or provocation, defendants, including P.O. SELMAJ and P.O. DOE, stopped Plaintiff and falsely accused Plaintiff of having a warrant. Next, Claimant was taken to a police precinct and then to Bronx County Central Booking. Thereafter, based on the erroneous claim that Plaintiff had a warrant in Queens County, members of CORRECTIONS drove Plaintiff to the Vernon C. Baine Center, where Plaintiff was searched and forced to remain in a jail cell.
7. On or about April 10, 2018, Plaintiff was taken to Queens County Criminal Court. There, a Judge ordered that Plaintiff be immediately released from custody because Plaintiff did not have a warrant.
8. Rather than immediately release Plaintiff, CORRECTIONS, without justification, held Plaintiff in custody for an approximately 10 additional hours.
9. Plaintiff was finally released from custody during the evening of April 10, 2018.

PROCEDURAL POSTURE

10. On June 26, 2018, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff’s behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the

nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable. On December 20, 2018, the Court granted Plaintiff's application to file a Late Notice of Claim.

11. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.
12. A 50-H hearing has been held.
13. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
14. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

15. Paragraphs 1-14 are incorporated by reference as fully set forth herein.
16. Plaintiff was aware of Plaintiff's arrest and confinement as described in paragraphs 6-9, and Plaintiff did not consent to that arrest or confinement.
17. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.
18. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: NEGLIGENCE

19. Paragraphs 1-18 are incorporated by reference as though fully set forth herein.
20. At all times hereinafter mentioned, the aforesaid false imprisonment was caused solely by the negligence of the Defendants, their agents, servants and/or employees.

21. As a result of the negligence of the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: NEGLIGENT SUPERVISION

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.
23. Defendant CITY, through its agents, servants and employees, including POLICE, had the responsibility for supervising, disciplining, evaluating and training of P.O. SELMAJ and the other POLICE officers involved in this matter.
24. Defendant CITY and POLICE have grossly failed to train and properly supervise its police officers, particularly the police officers involved herein, regarding the law of arrest, search and seizure.
25. Defendant CITY and POLICE were negligent by failing to implement a policy within its police department instructing police officers not to arrest individuals such as the Plaintiff unless there is a court authorized warrant or sufficient cause.
26. The foregoing acts, omissions and systematic failures are customs and policies of the Defendants, which caused its police officers to falsely arrest, maliciously prosecute, illegally search and seize Plaintiff.
27. The Defendants had the responsibility for supervising, disciplining, evaluating, and training the police officers involved herein, including P.O. SELMAJ.
28. Defendant CITY and POLICE were negligent in supervising, disciplining, evaluating, and training the police officers involved herein, including P.O. SELMAJ.

29. As a result of the negligence of defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

FOURTH CAUSE OF ACTION: NEGLIGENT HIRING

30. Paragraphs 1-29 are incorporated by reference as though fully set forth herein.

31. The Defendants had the responsibility for hiring P.O. SELMAJ.

32. The Defendants were negligent in hiring P.O. SELMAJ.

33. As a result of the negligence of the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
July 3, 2019

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X
EDWIN ANAYA,

Index No.Purchased: 23-19

Plaintiff

-against-

**CITY OF NEW YORK,
NEW YORK CITY DEPARTMENT OF CORRECTIONS,
POLICE OFFICER VISAR SELMAJ (shield # 956),
POLICE OFFICER JOHN DOE,**

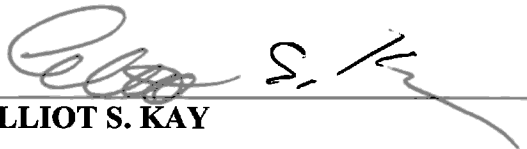
Defendants

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bronx, NY
July 3, 2019



ELLIOT S. KAY